

202223

FR.NO. 20223/2025

**BEFORE THE HON'BLE HIGH COURT OF KARNATAKA
KALABURAGI BENCH**

PRESENTATION FORM

W.P.No. **202048** /2025

Serial No. _____

VIJAYAPURA District

Advocate:

Between

Rakshith K S,
Bhavani Complex, 1st Floor,
New jewaragi Road,
Kalaburagi - 586201

**KRISHNA BHAGYA
JALA NIGAM LTD.**

Mob: 8618073619

AND

Email ID: rakshithkslaw@gmail.com

KAR/1240/2018

SLAO & ORS.

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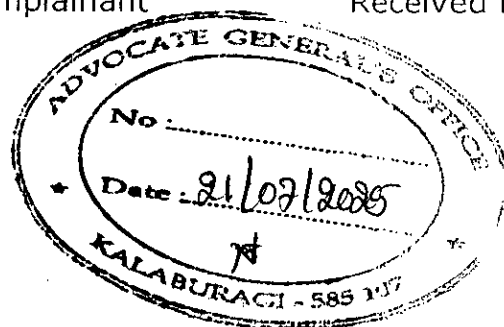
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IN THE HIGH COURT OF KARNATAKA

KALABURAGI BENCH

W. P. NO. /2025

BETWEEN:

KRISHNA BHAGYA JALA NIGAM LTD.

...PETITIONER

AND

THE SPECIAL LAND ACQUISITION OFFICER & Ors.

...RESPONDENTS

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PLACE: KALABURAGI

DATE:

**ADVOCATE FOR PETITIONER
(RAKSHITH K S)**

IN THE HIGH COURT OF KARNATAKA**KALABURAGI BENCH****W. P. NO. _____ /2025****BETWEEN:**

KRISHNA BHAGYA JALA NIGAM LTD.

...PETITIONER**AND**

THE SPECIAL LAND ACQUISITION OFFICER & Ors.

...RESPONDENTS**SYNOPSIS**

Date	Event
19.08.1994	Krishna Bhagya Jala Nigam Ltd. (KBJNL) incorporated under the Companies Act, 1956 for implementation of the Upper Krishna Project (UKP) in the State of Karnataka.
16.12.2014	SLAO awarded Rs.1,08,400/- for land acquired from Respondents / Claimants.
09.09.2022	District Judge exponentially enhanced compensation The said impugned judgment enhanced the award amount from

	Rs.1,08,400/- per Acre to Rs.12,97,619/- (11.97 times the original amount, representing a 1,097% increase) vide ANNEXURE-A wherein the Petitioner Nigam who is the beneficiary and necessary party was not made a party.
07.03.2024	State Government mandated KBJNL to be impleaded in all UKP-related proceedings
2024	KBJNL discovered irregularities in compensation enhancement when it began securing documents of the case.

BRIEF FACTS

Krishna Bhagya Jala Nigam Ltd. (KBJNL) was incorporated on 19th August 1994 under the Companies Act, 1956, as a government-owned entity responsible for implementing the Upper Krishna Project (UKP). On 16.12.2014, the Special Land Acquisition Officer (SLAO) awarded Rs.1,08,400/- as compensation for land acquired from Respondents / Claimants.

Subsequently, on 09.09.2022, the Reference Court exponentially enhanced the compensation. The said impugned judgment enhanced the award amount from Rs.1,08,400/- per Acre to Rs.12,97,619/- (**11.97 times** the original amount, representing a **1,097% increase**). On 7th March 2024, the State Government issued an order mandating KBJNL to be impleaded as a necessary party in all UKP-related proceedings. In 2024, KBJNL discovered irregularities in the compensation enhancement process and began securing case copies to address the issue.

PLACE: KALABURAGI

DATE:

**ADVOCATE FOR PETITIONER
(RAKSHITH K S)**

IN THE HIGH COURT OF KARNATAKA**KALABURAGI BENCH****W. P. NO. /2025****BETWEEN:****KRISHNA BHAGYA JALA NIGAM LTD.**

represented by its
MANAGING DIRECTOR,
Upper Krishna Project, Almatti,
Tq: Nidagundi,
Vijayapur Dist-586213

...PETITIONER**AND****01. THE SPECIAL LAND ACQUISITION OFFICER,**

UKP
Almatti, Tq. B. Bagewadi
VIJAYAPURA - 586201

...RESPONDENT NO.1**(RESPONDENT NO.1 IN L.A.C. NO.355/2018)****02. THE STATE OF KARNATAKA**

Represented by
Deputy Commissioner,
VIJAYAPURA - 586201

...RESPONDENT NO.2**(RESPONDENT NO.2 IN L.A.C. NO. 355/2018)****03. MALLAPPA**

S/o. Ramappa Talevad,
Age: 35 years,
Occ: Agriculture,
R/o. Nagaradinni, Tq. B.Bagewadi,
Dist: Vijayapura

...RESPONDENT NO.3**(CLAIMANT NO.2a IN L.A.C. NO. 355/2018)**

MEMORANDUM OF WRIT PETITION UNDER ARTICLES 226
& 227 OF THE CONSTITUTION OF INDIA

The Petitioner respectfully submits as under:

This Writ Petition is filed praying for issuance of a writ of Certiorari and quashing the impugned Judgment dated 09.09.2022 in L.A.C.No.355/2018 (**ANNEXURE-A**) passed by the Hon'ble 3rd Addl. District Judge And Additional Land Acquisition, Rehabilitation and Resettlement Authority, Vijayapura. Copy of the Impugned Judgments is produced and marked as **ANNEXURE-A**.

Apart from seeking the aforesaid reliefs, the Petitioner has also sought for certain other reliefs which are ancillary to the main relief.

BRIEF FACTS OF THE CASE

The Petitioner submits that:

- 01.** Krishna Bhagya Jala Nigam Ltd (KBJNL) was incorporated on 19th August 1994 under the Companies Act, 1956 as a Company wholly owned by the Government of Karnataka specifically for implementation of the Upper Krishna Project (UKP) in the State of Karnataka. The Company is statutorily

responsible for planning, investigation, estimation, execution, operation and maintenance of all irrigation projects coming under the UKP and is also responsible to obtain Government of India's clearance and execute the UKP. The Company is further entrusted with the responsibility of Rehabilitation and Resettlement of the people affected by the Project. It is thus evident that the Petitioner KBJNL is the designated beneficiary entity for whose benefit the Special Land Acquisition Officers are acquiring lands under the Upper Krishna Project, and all such acquired lands are ultimately transferred to and utilized by the Petitioner KBJNL for the implementation of the irrigation project. The Petitioner KBJNL, being the statutory beneficiary of all land acquisitions undertaken for the Upper Krishna Project, has a direct, substantial and legally enforceable interest in all compensation proceedings related to such acquisitions, thereby making it an indispensable party to any reference proceedings seeking enhancement of compensation for lands acquired for the UKP.

- 02.** Krishna Bhagya Jala Nigam Limited (KBJNL) is currently implementing the Upper Krishna Project (UKP) Stage-III, an ambitious irrigation infrastructure project designed to provide
-

irrigation facilities to 5.94 lakh hectares of agricultural land across seven districts in North Karnataka - Vijayapura, Bagalkote, Gulbarga, Yadgir, Raichur, Koppal, and Gadag. Additionally, the project includes critical rehabilitation and resettlement activities for 20 villages that will be submerged in the Almatti Dam backwaters, as well as land acquisition for submergence areas and rehabilitation works for Bagalkote Town. The Krishna Bhagya Jala Nigam Limited (KBJNL) requires approximately 1,27,000 acres of land for the Upper Krishna Project (UKP) Stage III. This includes land for various components of the project, as well as for the rehabilitation and resettlement of displaced families. Specifically, around 55,000 acres are currently being acquired, with the remaining land acquisition still in progress.

- 03.** The land acquisition process follows established procedure wherein the government (acquiring body) appoints special land acquisition officers as the acquiring authority responsible for procuring lands on behalf of Krishna Bhagya Jala Nigam Limited (KBJNL) being the beneficiary/Requiring Body, former raises the demand for the funds towards payment of compensation to

the land owners/ claimants and accordingly the same is being paid by the latter from time to time.

04. The procedure between the acquiring authority / Respondent No.1 and the Beneficiary / the Petitioner herein regarding the acquisition and payments is as under:

- The acquiring authority would acquire the lands and SLAO would pass awards fixing the quantum of compensation.
 - Wherever the reference application is preferred under Sec. 18 (1) of Land Acquisition Act / Sec. 64 of RFCTLARR Act, 2013 for enhancement by the claimants, the beneficiary / Petitioner herein has never been made a party in any of the cases but all the payments are made by the Beneficiary / Petitioner herein to Respondent No.1.
 - On demand by Chief Accounts Officer R & R, whenever funds are available with the petitioner, amounts are released in bulk to Chief Accounts Officer and the said amounts are used to make the payments by R1.
 - Petitioner will never be aware as to whom the payments are made, the quantum of payments made by R1's to
-

various claimants or about the enhancement made by the Reference Court, or about the documents relied upon or the procedure followed while passing such order of enhancement by the Reference Court, no about the names of the claimants, or their lands etc.

05. The petitioner has now come to know that the amounts released by the Petitioner herein has been utilised by Respondent No.1 to make payments to the claimants, however in none of the cases the Petitioner is made aware of the details of the claims made by various claimants or about the various awards or about the judgement of the reference courts.

06. Unfortunately, the petitioner has never been notified about the details of the proceedings for awards or the details of the proceedings for enhancement before the various reference court. Despite the specific directions issued by the Hon'ble Supreme court and direction issued by State of Karnataka, no steps have been taken to implead the petitioner herein as a party in any of the proceedings. In majority of the cases there is practically no contest and the material documents are not been placed before the reference courts, resulting in grave

injustice and exorbitant amounts being fixed by the reference courts.

07. The established practice is that when the reference courts passes judgment enhancing the awarded amount, legal opinion will be sought by R1 from the Legal Cell, R & R. When Legal Cell R & R opines that the case is 'Not fit for Appeal', the same will be forwarded to the Central Legal Cell seeking its opinion. If the Central Legal Cell also opines that such cases are 'Not fit for Appeal', the same would be communicated to the concerned SLAO. Funds would be released by R1 in favour of claimants in such cases.

08. The petitioner has also come to know that several cases are opined as not fit for appeal by the legal team of R1, even though the judgements are apparently illegal. And without contesting such judgements, payments are made by R1. Therefore it is respectfully submitted that payments if any made by R1, will not estop nor does it debar the petitioner from challenging the concerned judgements which are illegal and without jurisdiction.

09. Since the petitioner was never aware of the impugned judgements and was never notified or made parties in LAC proceedings, impugned judgements are without jurisdiction and void abinitio.

10. The Petitioner has come to know about all these impugned judgments only in 2024 and unfortunately there is no mechanism whereby the Respondent No.1 shares the information of the pendency of the cases of the payments filed by various claimants which resulted in serious and heavy loss of several crores of rupees to the exchequer. The petitioner has every right to recover the amounts which have been so obtained/ released in favour of the beneficiaries.

11. The petitioner has further come to know that all these payments are released in undeserving case also by respondent no. 1 by obtaining indemnity bond from the claimants. This makes it clear the mere discharge of the liabilities by the respondent no. 1 covered under the impugned judgements does not disentitle the petitioner from challenging judgement nor does it render impugned judgements final. The payments

are made subject to the indemnity bond which clearly mention that payment does not give any right to the claimants.

12. Petitioner has come to know that there are thousands of cases which have been filed by the claimants without arraigning the petitioner as a party and judgements are also passed in such cases. As and when the details are obtained the petitioner is making best efforts to obtain the details and also challenge the same. However any such judgement obtained without making petitioner as a party is a nullity and void abinitio and it is a fit case where this Hon'ble court issues such a declaration to save the precious money of the exchequer and to stop such orders and their enforcements.

13. In this case, the Special Land Acquisition Officer (SLAO) passed an award in respect of land measuring 7 Acres 21 Guntas owned by the private respondents, which was acquired for the UPK III project. Subsequently, upon a reference being made by Private Respondent/s under Section 64 (1) of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013, the Reference Court rendered its judgment dated 09.09.2022 in

L.A.C.No.355/2018, without following the procedure laid down in the RFCTLARR Act, 2013, which is annexed hereto as **Annexure-A** The said impugned judgment enhanced the award amount from Rs.1,08,400/- per Acre to Rs.12,97,619/- **(11.97 times** the original amount, representing a **1,097% increase**), thereby increasing the compensation payable to the landowners.

14. It is very shocking to know that the petitioner has never been notified in the impugned proceedings and the petitioner has not been arraigned as the party and as such the petitioner on no occasion to contest the case, the petitioner was never aware off the proceedings till 2024 and immediately the petitioner has applied for certified copies and the same has not been granted, the print out from the official website has been produced as annexure and a separate I.A. is filed for dispensation is filed.

15. The Petitioner has not acquiesced to or accepted the impugned judgment in any manner. The moment the Petitioner became aware of the judgment and its implications,

it has promptly approached this Hon'ble Court, demonstrating its bona fide intention to challenge the same.

16. The constitutional bench Hon'ble Supreme Court of India, in ***U.P. Awas Evam Vikas Parishad vs. Gyan Devi, (1995) 2 SCC 326 at page 343***, has held that the beneficiary is a necessary party and any order/judgment passed without notifying the beneficiary is without jurisdiction and beneficiary entitled to challenge the Same by way of a writ petition. The government of Karnataka has also issued notification vide No. RD04 LAC 2024 (E-1351620) dated 07/03/2024 vide **ANNEXURE-B**, ordering that the beneficiary must be arraigned as a necessary party, despite the same the no steps have been taken to implead the petitioner/ beneficiary in any of the proceedings and the courts below have also failed to order for impleading , and the private respondents have deliberately left out the petitioner as a party in the proceedings and obtained orders by suppression of material facts. It is further submitted there are thousands of cases filed by the claimants before the various reference courts in in various Districts which comes within the purview of Upper Krishna Project III. Thereby the claimants have not impleaded the beneficiary as a party but

they are in the process of obtaining orders of exponential enhancement at the back of the petitioner and they will executed it and make unlawful gain. Hence it is a fit case to issue direction to the concerned presiding officers to strictly obey the guidelines issued by the Hon'ble Supreme Court in ***U.P. Awas Evam Vikas Parishad vs. Gyan Devi, (1995) 2 SCC 326 at page 343*** order for the impleading of the beneficiary before proceeding further and any orders/judgments obtained from the reference courts without arraigning the beneficiary is required to be treated as null and void.

17. The ex-parte enhancement of the award amount without hearing the Petitioner Nigam creates serious impediments to the completion of the Upper Krishna Project Stage -III since it disrupts the approved financial planning and budgetary allocations for the Upper Krishna Project Stage -III, potentially causing cost overruns and project delays.

18. Further the precedent of ex-parte enhancement is encouraging similar claims in other land acquisition matters

related to the project, exponentially increasing the financial burden and creating uncertainty in project execution.

- 19.** The Upper Krishna Project Stage -III is a vital irrigation and drinking water project serving multiple districts and benefiting lakhs of farmers and citizens. The impediments created by ex-parte enhancement of award amount adversely affect irrigation schedules of dependent agricultural areas, affecting crop patterns, farmer livelihoods and drinking water component of numerous towns and villages.
- 20.** The Petitioner Nigam maintains comprehensive data on land values, market trends, and reasonable compensation benchmarks across the project area, which remained unavailable to the trial court since the Petitioner Nigam was not made as a party to the proceedings.
- 21.** It is submitted that the ex-parte enhancement of award amount violates established principles of fiscal responsibility and prudent financial management since the Petitioner Nigam is a custodian of public funds and has statutory obligations to ensure judicious utilization of resources for maximum public benefit.

- 22.** The reference court was not informed about the funding arrangements, sources of compensation payment, and the financial chain connecting the SLAO's disbursement authority to The Petitioner Nigam's financial resources. The Court was not presented with the broader project context, public interest considerations, and the impact of compensation decisions on project viability and completion timelines since The Petitioner Nigam was not heard.
- 23.** The flawed proceedings have created adverse precedent that encourages similar incomplete presentations in other related cases, multiplying the prejudicial effects.
- 24.** Hence this Writ Petition.
- 25.** The petitioner has no other alternative and efficacious remedy except to approach this Hon'ble court by way of filing this Writ Petition.
- 26.** The Petitioner has not questioned the validity of any State or central enactment in this Writ Petition.

27. The Petitioner has not filed any writ nor commenced any proceedings before any court of law or authority and no proceedings is pending before any court of law or authority in respect of the relief's claimed in this Writ Petition.

28. Aggrieved by Impugned Judgment at **ANNEXURE-A** the petitioner has filed this Writ Petition on the following amongst other grounds to be urged at the time of hearing of this Writ Petition.

GROUND

29. It is submitted that the Petitioner is a 'person interested' as defined under Section 3 (x) of the New Land Acquisition Act, 2013 and it reads as follows:

"Section 3(x): "person interested" means—

(i) all persons claiming an interest in compensation to be made on account of the acquisition of land under this Act;

(ii) the Scheduled Tribes and other traditional forest dwellers, who have lost any forest rights recognized under the Scheduled Tribes and Other Traditional Forest Dwellers (Recognition of Forest Rights) Act, 2006 (2 of 2007);

(iii) a person interested in an easement affecting the land;

(iv) persons having tenancy rights under the relevant State laws including share-croppers by whatever name they may be called; and

(v) any person whose primary source of livelihood is likely to be adversely affected."

30. Therefore KBJNL being the beneficiary of the project for which the land has been acquired, is a 'Person Interested' as defined under Section 3 (x)(i) of the New Land Acquisition Act, 2013 as has been held by the Hon'ble Apex Court in a catena of Judgments.

31. Judgments and award are in contravention of the law laid down by the **Hon'ble Apex Court** in the case of ***Neyvely Lignite Corporation Ltd. vs Special Tahashildar (land Acquisition) Neyvely&Ors, reported in 1995 (1) SCC 221,*** wherein it was held that the Beneficiary is a 'person' interested' to determine just and proper compensation for an acquired land and is an aggrieved person and thus, a proper and necessary party under Order 1 rule 10 of CPC.

32. Section 66 of the New Land Acquisition Act, 2013 which is similar to Section 20 of the Old Act, contemplates that after the

Authority/ Reference Court receives reference from the SLAO/collector, it shall issue notice to all 'persons interested' and reads as under:

Section 66: *Service of notice by Authority. – The Authority shall thereupon cause a notice specifying the day on which the Authority will proceed to determine the objection, and directing their appearance before the Authority on that day, to be served on the following persons, namely:*

- . the applicant;*
- . **all persons interested in the objection**, except such (if any) of them as have consented without protest to receive payment of the compensation awarded; and*

(c) if the objection is in regard to the area of the land or to the amount of the compensation, the Collector.

Therefore, KBJNL being a 'person interested', is entitled to receive notice from the Reference Court and participate in the proceedings. The Reference Court has erred in not issuing the notice to the Petitioner and in not following the mandate of Section 66.

33. Non-issuance of Notice to KBJNL by the District Court as contemplated under Section 20 of Land Acquisition Act, 1894

or under Section 66 of the New Land Acquisition Act, 2013, and proceeding with the matter in the absence of the beneficiary-Respondent is in negation of fair and proper procedure and against the principles of natural Justice and is thus in violation of Article 14 of the Indian Constitution.

34. That the Hon'ble District Court failed to appreciate the evidence on record properly and erred in arriving at the conclusion which is contrary to law and has not considered the legal precedents applicable in this case, thereby rendering the Judgment erroneous and the findings of the Hon'ble District Court are perverse and not supported by substantial evidence.

35. Sec. 26 of the Act gives the mechanism to be adopted in determining the market value. Sec.26 reads as follows:

"26. Determination of market value of land by Collector.-

(1) The Collector shall adopt the following criteria in assessing and determining the market value of the land, namely:—

(a) the market value, if any, specified in the Indian Stamp Act, 1899 (2 of 1899) for the registration of sale deeds or agreements to sell, as the case may be, in the area, where the land is situated;
or

(b) the average sale price for similar type of land situated in the nearest village or nearest vicinity area; or

(c) consented amount of compensation as agreed upon under sub-section (2) of section 2 in case of acquisition of lands for private companies or for public private partnership projects, whichever is higher:

Provided that the date for determination of market value shall be the date on which the notification has been issued under section 11.

Explanation 1.—The average sale price referred to in clause (b) shall be determined taking into account the saledeeds or the agreements to sell registered for similar type of area in the near village or near vicinity area during immediately preceding three years of the year in which such acquisition of land is proposed to be made.

Explanation 2.—For determining the average sale price referred to in

Explanation 1, one-half of the total number of sale deeds or the agreements to sell in which the highest sale price has been mentioned shall be taken into account.

Explanation 3.—While determining the market value under this section and the average sale price referred to in Explanation 1 or Explanation 2, any price paid as compensation for land acquired under the provisions of this Act on an earlier occasion in the district shall not be taken into consideration.

Explanation 4.—While determining the market value under this section and the average sale price referred to in Explanation 1 or Explanation 2, any price paid, which in the opinion of the Collector is not indicative of actual prevailing market value may be discounted for the purposes of calculating market value. average sale price referred to in Explanation 1 or Explanation 2, any price paid, which in the opinion of the Collector is not indicative of actual prevailing market value may be discounted for the purposes of calculating market value.

36. Though Respondent No.1 has followed the steps mentioned in Sec.26 of the Act in determining the market value of the land, the Learned District Judge has erroneously considered only three sale deeds and exorbitantly enhanced the market value.

37. It is submitted that the first respondent being the acquiring authority has initiated land acquisition proceedings for the purpose of formation of UKP project on behalf of the beneficiary and ultimately, beneficiary is entitled to take over the land acquired by the first respondent and form the project and the compensation too would be paid by the beneficiary party i.e. the Petitioner Nigam herein. Therefore, in the context, the beneficiary on whose behalf of the land is acquired is a proper and necessary party. Though the proceedings can be adjudicated in the absence of proper party, necessary party is that in whose absence, there could not be effective adjudication between parties. Therefore, the Petitioner Nigam which is the beneficiary is not only a proper party, but also necessary party.

38. The Hon'ble Supreme court in ***U.P. Awas Evam Vikas Parishad vs. Gyan Devi, (1995) 2 SCC 326 at page 343,*** has observed that in para 21 "*the law is well settled that a necessary party is one made made effectively and a proper party is one without whom no order can be made effectively and a proper party is one in whose absence as effective order can be made but whose presence is necessary for a complete and final decision of the question involved in the proceedings*".

The Hon'ble Supreme Court in has consistently held that where a party is necessary for the effective adjudication of a matter, proceedings conducted in its absence are liable to be set aside. The failure to join Krishna Bagya Jala Nigama Ltd. falls squarely within this principle.

39. The petitioner Krishna Bagya Jala Nigama Ltd. is the actual beneficiary of the land acquisition proceedings and is the statutory body responsible for payment of compensation to the claimants through the Special Land Acquisition Officer (SLAO). The failure to implead Krishna Bhagya Jala Nigama Ltd. as a respondent in the trial court proceedings constitutes a fatal defect rendering the entire proceedings null and void.

40. The trial court lacked inherent jurisdiction to adjudicate upon the matter and grant enhanced compensation in the absence of Krishna Bhagya Jala Nigama Ltd., being the principal party liable to pay such compensation. The adjudication of compensation matters without the presence of the actual paying authority violates principles of natural justice and renders the judgment unenforceable.

41. The reference Court has to issue the notice to the Beneficiary when the compensation determined by the SLAO is challenged by the Claimant before the Reference Court since it is mandatory as per Section 20 of the Land Acquisition Act (Old Act) that, a notice has to be issued to the beneficiary.
42. The beneficiary of acquisition upon whom the burden to pay the compensation and enhanced compensation falls under the scheme of the law relating to acquisition of the land and therefore, consistent with the requirement of the principles of natural justice, such beneficiary has to be afforded an opportunity of hearing.
43. It is further submitted that in a proceeding seeking enhancement of compensation, if the land owner has not taken steps to implead beneficiary, then in such a case it is just and necessary that the Reference Court Suo moto impleads beneficiary of acquisition which would avoid multiplicity of proceedings.

GROUND FOR INTERIM RELIEF

Though the Petitioner Nigam herein is a Necessary Party, the Parties to the earlier proceedings have not made the Petitioner

Nigam as a party and obtained the impugned Judgment and the Respondent / Claimant is trying to get the attachment orders by filing execution proceedings. If the operation of the impugned Judgment and award is not stayed, the above petitioner Nigam will be put to great hardship. If the interim order as prayed for is granted, no prejudice or loss would be caused to the Respondent. On the other hand, if the interim order is not granted, the petitioner Nigam will be put to great loss and hardship which cannot be compensated in any manner. Hence the interim prayer.

PRAYER

WHEREFORE, the petitioner respectfully prays that this Hon'ble court may be pleased to:

- a) Issue writ of Certiorari and quash the impugned Judgment dated 09.09.2022 in L.A.C.No.355/2018 (**ANNEXURE-A**) passed by the Hon'ble 3rd Addl. District Judge And Additional Land Acquisition, Rehabilitation and Resettlement Authority, Vijayapura.
- b) Remand the matters to the trial court with specific direction to re-hear the matters afresh after mandatorily impleading the Petitioner as one of the Respondents and afford it full opportunity

to participate in the proceedings, present its defence, adduce evidence, and make legal submissions;

c) Issue appropriate writs or order declaring that all the judgements obtained from the various reference courts under Section 64 (1) of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 for enhancement of the compensation in respect of the lands covered by UKP III project, without arraying petitioner/ beneficiary of the lands as a party, is null and void and inexecutable.

d) Issue appropriate writs or order directing all the reference courts exercising the powers under the Act to implead the petitioner/beneficiary of the lands covered by UKP III project as a party respondent and afford an opportunity of hearing to the petitioner, before proceeding further in such cases.

e) Issue any other writ, order or direction as this Hon'ble Court deems fit and proper in the interest of Justice, Fairness and equity under the circumstances of this case.

INTERIM PRAYER

During the pendency of the above Writ Petition, the petitioner respectfully prays that this Hon'ble Court may kindly be pleased to

stay the operation, execution, enforceability and validity /use of the impugned judgment for any purpose and all further proceedings / actions based on the said impugned Judgment dated 09.09.2022 in L.A.C.No.355/2018 (**ANNEXURE-A**) passed by the Hon'ble 3rd Addl. District Judge And Additional Land Acquisition, Rehabilitation and Resettlement Authority, Vijayapura in the interest of Justice & Equity.

PLACE: KALABURAGI

DATE:

**ADVOCATE FOR PETITIONER
(RAKSHITH K S)**

ADDRESS FOR SERVICE:

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Email ID: rakshithkslaw@gmail.com

**IN THE HIGH COURT OF KARNATAKA, KALABURAGI BENCH,
KALABURAGI**

WP No.

/ 2025

BETWEEN

Krishna Bhagya Jala Nigam Limited

Petitioner

AND

The Special Land Acquisition Officer & Ors

Respondents

Verifying Affidavit

I, Ravikumar P., S/o. Late R. Puttasetty, Age: 51 Years, Occ: General Manager- Administration and Human Resources, Krishna Bhagya Jala Nigam Limited, 3rd Floor, PWD Office Annexe Building, K. R. Circle, Bengaluru - 560 001, today at Bengaluru, do hereby solemnly affirm & state on oath as follows.

1. I am the General Manager- Administration and Human Resources of the Petitioner - Company in the above case. I am the authorized representative of the Petitioner. I am well conversant with the facts of the case. Hence, I am swearing to the contents of this affidavit.

2. I submit that the averments made in Para Nos. 1 to of the accompanying writ petition are true and correct to the best of my knowledge, belief and information.

3. I submit that, the Annexure - A are true copies of their respective originals.

PLACE : BENGALURU

DATE :

29 MAY 2025

Identified by me

Advocate

SWORN TO BEFORE ME

DEPONENT

ರವಿಕುಮಾರ್ ಪಿ
ಕೆ.ಆರ್.ಸಿ. (ಆಯ್ಕೆ ಶ್ರೇಣಿ)

ಪ್ರಧಾನ ವ್ಯವಸ್ಥಾಪಕರು - ಆಡಳಿತ

ಕೃಷ್ಣಾ ಭಾಗ್ಯ ಜಲ ನಿಗಮ ನಿಯಮಿತ

ಪಿಡಬ್ಲ್ಯುಡಿ ಆಫೀಸ್ ಪೂರಕ ಕಟ್ಟಡ, 3ನೇ ಮಹಡಿ

ಕೆ.ಆರ್. ವೃತ್ತ, ಬೆಂಗಳೂರು-560 001

P. ANURADHA, M.A.M.L.M.Phil.

ADVOCATE & NOTARY PUBLIC

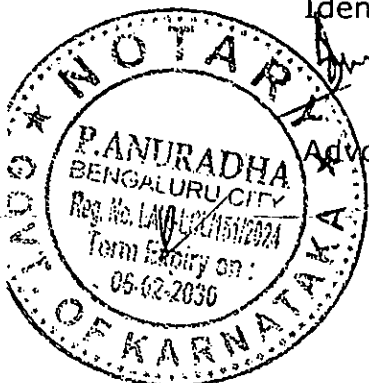
No. 702, "Akshaya Lokeshwari Nilaya"

5th Block, Gopalrao Patil Nagar, Bengaluru-560 001

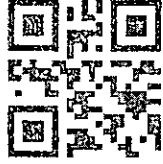
Kengeri, Bengaluru, Bengaluru-560 001

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Vol. Date 29/5/25



KAVP010014162018



Presented on : 22-03-2018
Registered on : 24-03-2018
Decided on : 09-09-2022
Duration : 4 years, 5 months & 16 days

**IN THE COURT OF III ADDITIONAL DISTRICT
JUDGE AND ADDITIONAL LAND ACQUISITION,
REHABILITATION AND RESETTLEMENT
AUTHORITY, VIJAYAPURA**

Present :

Sri SUBHASH SANKAD,
B.A., LL.M.,
III Additional District Judge,
Vijayapura.

Dated this the 9th day of September, 2022

L.A.C.No.355/2018

Claimant/Petitioner:

Mallappa S/o. Ramappa Talevad,
Age: 35 years, Occ: Agriculture,
R/o. Nagaradinni, Tq. B.Bagewadi,
Dist: Vijayapura.

(By Sri S.S.Math, Advocate)

// Versus //

Respondents:

1. The Special Land Acquisition Officer,
UKP, Almatti, Tq. B.Bagewadi.

2. The State of Karnataka,
Represented by Deputy Commissioner,
Vijayapura.

(By Sri B.B.Yadwad, Special Government
Counsel)

J U D G M E N T

This Reference Application is filed under Section 18(1) of the Land Acquisition Act of 1894 and Section 64 (1) & (2) of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 (hereinafter referred as 'Act'), being aggrieved by the award passed in LAQ:SR:No.91/2012-13 dated 16.12.2014 with a request to enhance the compensation.

2. The brief facts of the Reference Application are as under:

The petitioner herein is the owner of the land bearing Sy.No.39 situated at Nagaradinni village. The land to the extent of 7 acres 21 guntas has been acquired by the respondents for the purpose

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of Mulawad Lift Irrigation Canal and the respondent No.1 has awarded the compensation of Rs.68,000/- for dry land and Rs.1,08,400/- for irrigated land. It is stated that while passing the award and fixing the compensation the respondent No.1 has not considered all the factors in a proper perspective and the petitioner herein has not been given proper opportunity to put-forth his claim before the respondents' authority. Without following proper procedure the respondent No.1 has acquired the land. It is further stated that the petitioner herein was having Teakwood trees, Mango trees and Sugarcane, etc. The award passed by the SLAO was inadequate. Due to the acquisition of the land by the respondent's authority he has suffered huge loss. By considering all these aspects into consideration the claimant has prayed to enhance the compensation as prayed for.

3. In response to the notice, the respondents have appeared through learned Special Government Counsel and filed objections. It is stated in the objections that the Reference Application is not filed within time. Further the SLAO has fixed the market value of the land and passed the award, by taking into consideration all the factors, according to law. The claimant has not submitted any application to Revenue Department for revise of assessment of land as per Secs.114 & 116 of Karnataka Land Revenue Act to show that the market value which is assessed by the SLAO is not correct and under valued. Hence, the sale deeds, other judgments and awards produced by the claimant cannot be considered. The SLAO while fixing the award has considered all the parameters. The documents relied upon by the claimant cannot be looked into as they have not proved. The documents relied upon by the claimant are not relevant to the case in hand. The claimant has

failed to prove the said documents are in accordance with law. It is his further contention that the claimant has not proved that the lands of the said sale deeds and the acquired land are not similar type of lands. The award passed by the SLAO is just and proper and the same does not require enhancement. With this he has sought for rejection of the Reference Application and prayed to confirm the award passed by the SLAO.

4. To support his claim, the claimant himself has been examined as PW-1. The respondents have got marked notice and award as Exs.R-1 & 2 with consent.

5. I have heard both sides. Now, the points that arise for my consideration are as under:

- 1) *Whether the claimant proves that he has filed Reference Application within stipulated time?*
- 2) *Whether the claimant proves that the SLAO while passing the award has*

not fixed the fair and adequate compensation?

3) Whether the Reference Application filed by the claimant deserves to be allowed?

4) What Order?

6. To substantiate his claim, the claimant himself has been examined as PW-1 and he has produced documents as per Exs.P-1 to 14. Ex.P-1 is the Reference Application; Exs.P-2 to 7 are the certified copies of sale deeds; Ex.P-8 is the certified copy of Proceedings of Deputy Commissioner, Vijayapura; Ex.P-9 is the certified copy of Proceedings of Siddeshwar Sugars Ltd.; Ex.P-10 is the certified copy of Proceedings of Deputy Commissioner, Vijayapura; Ex.P-11 is the certified copy of Judgment in LAC No.4/2015; Exs.P-12 & 13 are the Record of Rights and Ex.P-14 is the Taluka Map.

7. Though opportunity is given, the respondents have not led any evidence. However, they have produced the copies of the notice and award and the same are marked as Exs.R-1 & 2 with consent.

8. My answer to the above points are as under:

- 1) In the affirmative;
- 2) In the affirmative;
- 3) Partly in the affirmative;
- 4) As per the final order,
for the following:

REASONS

9. **Point No.1:** The learned counsel for the respondents has stated in his objection that the Reference Application is not filed within time and the same is time barred. The suggestion in this regard was also put to PW-1. PW-1 has denied the suggestion and he has stated that he has filed the Reference Application in time. The award was passed on 16.12.2014 and the Reference Application is filed on 23.03.2018. Relying upon

these dates, I hold that the Reference Application filed by the claimant is well within time as per Section 64 (1) of the Act. In the result point No.1 is answered in the affirmative.

10. **Point Nos.2 & 3:** Since both these points are interconnected with each other, for the sake of convenience, I would like to take these points together for common consideration. The claimant has claimed enhanced compensation as against compensation of Rs.68,000/- for dry land and Rs.1,08,400/- for irrigated land.

11. As per Section 64 of the Act, it is necessary for this authority to take into consideration whether upon this the respondents have followed the parameters set-up under Section 26 to Section 30 of the Act. To determine the market value the respondent No.1 has taken into consideration the sale deeds registered for similar type of area in the village during immediately

preceding 3 years. Further, out of the available sale deeds the sale deeds in which the highest sale price has been mentioned are taken into consideration. However, the claimant has produced before this authority several sale deeds, to contend that the respondent No.1 has not taken into account the sale deeds in which highest sale price has been mentioned.

12. Since this authority has to redetermine the compensation, the redetermination of the compensation must also be done as per Section 26 of the Act. As per Section 26 (1)(a) the market value, specified in the Indian Stamp Act, 1899 for the determination of the sale deed or agreement to sell, in the area, where the land is situated has to be taken into consideration. However, in the present case both parties have not produced any documents to show that the market value specified for the registration of the sale deed or agreement to sell. Further, the Collector himself

has considered the sale deeds registered for similar type of area during preceding 3 years. This indicates that the market value as per Section 26 (1)(a) is not fixed. Under such circumstances, this authority has to resort to adopt the criteria mentioned in Clause-b.

13. The claimant has produced before this authority several sale deeds, to contend that the respondent has not taken into account the sale deeds in which highest sale price has been mentioned. The claimant has produced sale deeds of Masuti, Golasangi and Telagi villages.

14. Among these villages, Masuti village is nearest to Nagaradinni village. Exs.P-2 to P-5 are the sale deeds pertaining to Masuti village. Ex.P-2 is dated 09.12.2013; Ex.P-3 is registered on 30.12.2013. The Notification in this case is received on 15.01.2013. Since Exs.P-2 & P-3 are registered subsequent to the Notification the same

cannot be considered. Hence, these sale deeds cannot be considered.

15. The learned Special Government Counsel has contended that Section 26 of the Act provides for consideration of sale deeds of similar type of lands. In the present case, the claimant has not proved that the acquired land and the lands mentioned in the sale deeds are similar type of lands. The lands mentioned in the sale deeds are all just abutting the Highways and roads and they are all acquired for the purpose of commercial and industrial purpose and the area mentioned in those sale deeds is meager and hence the same cannot be considered.

16. It is very difficult to consider this submission, because Clause (b) of Sub-Section (1) of Section 26 itself provides to consider the average sale for similar type of lands situated in the nearest village or nearby vicinity area. The

claimant has produced several sale deeds of different villages, among which the sale deeds of Masuti village are considered. Though the learned Special Government Counsel has contended that the claimant has not proved the similarity of the lands, these sale deeds does not show any distinction between the lands. Moreover, there are no reasons to discard these sale deeds, as the respondent has not elicited the same in the cross examination of PW-1 and has not produced any materials to establish that the lands are not similar type of lands. As such, the sale deeds can be considered.

17. Ex.P-4 is the sale deed dated 29.06.2012 conveys 3 acres 6 guntas (126 guntas) of land for Rs.27,50,000/-. The same is Rs.21,825.39 per gunta. Ex.P-5 is the sale deed dated 22.12.2012 conveys 5 acres 10 guntas (210 guntas) of land for Rs.45,00,000/-. The same is Rs.21,428.57 per gunta.

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18. The average sale price of the three sale deed is Rs.21,626.980. The same is Rs.8,65,079.228. The acquired land is shown to be the irrigated land. The Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 does not make any distinction between the dry land and the wet land. The Act does not prescribe more compensation to the wet land. However, the wet land fetches more yield due to the availability of the water and the value of the land is more because of the availability of the water. Though the Act does not prescribe more compensation to wet land, in **MSA No.1138/2013 and other connected matters, between Naganna and Others Vs. The Special Land Acquisition Officer** the Hon'ble High Court of Karnataka has considered this aspect and fixed the market value to the extent of one and half time more proportionate to the award passed in respect of

dry land. By applying this Judgment to the present case; the market value of the acquired land per acre in the present case is increased by one-half of the market value given to the dry land. One-half of the same is Rs.4,32,539.61. Hence, the average sale price of the acquired irrigated land in the present case is determined @ Rs.12,97,618.84. The same is Rs.32,440.47 per gunta. This amount is considered to determine the market value of the acquired wet land in the present case.

19. The extent of land acquired in the present case is 7 acres 21 guntas i.e., 301 guntas. The total market value of the acquired land is Rs.97,64,581/- (Rs.32,440.47 x 301 = Rs.15,89,583.03 rounded off to Rs.97,64,581.47 rounded off to Rs.97,64,581).

20. The acquired land is situated in rural area. So, the market value needs to be multiplied

by the Factor 2 as per First Schedule of RFCTLARR Act 2013. Further, the claimant is entitled for 100% solatium on market value as per Section 30(1) of the Act.

21. The total compensation for which the petitioner is entitled for, is computed as follows:

Sl. No.	Description	Amount (In Rs.)
1.	Market value of the acquired land	97,64,581/-
2.	Market value multiplied by Factor-2	1,95,29,162/-
3.	100% solatium on market value	97,64,581/-
4.	Total compensation	3,90,58,324/-

22. Further, the claimant is also entitled for additional market value @ 12% per annum from the date of publication of the notification of the Social Impact Assessment Study till the date of the award of the Collector i.e., from 15.01.2013 to 16.12.2014 as per Section 30(3) of the Act.

23. Further, claimant is also entitled for interest @ 9% per annum for a period of one year, on excess compensation from the date of taking possession and thereafter 15% per annum till deposit of the amount under Section 72 of the Act. Accordingly, point No.2 is answered in the affirmative and point No.3 is answered partly in the affirmative.

24. **Point No.4:** In view of reasons on point Nos.1 to 3, I pass the following:

ORDER

The reference petition filed under Section 64 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 filed by the petitioner is hereby partly allowed with costs.

The claimant in respect of acquired land measuring 7 acres 21 guntas in Sy.No.39 situated at Nagaradinni village

is entitled for total compensation of Rs.3,90,58,324/-.

Further, the claimant is also entitled for additional market value @ 12% per annum on market value of Rs.97,64,581/- from the date of publication of the notification of the Social Impact Assessment Study till the date of the award of the Collector i.e., from 15.01.2013 to 16.12.2014 as per Section 30(3) of the Act.

The claimant is also entitled for interest at the rate of 9% per annum on excess compensation U/S.72 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 for a period of one year from the date of dispossession and thereafter, at the rate of 15% per annum for the subsequent period till the date of deposit of enhanced compensation.

The amount, if any, already paid to the claimant, shall be deducted in the above said amount.

Award shall be drawn in the above terms.

(Dictated to the Judgment Writer directly on the Computer, script corrected and then pronounced by me in the Open Court on this the 9th day of September, 2022)

(SUBHASH SANKAD)

III Additional District Judge
& Additional Land Acquisition,
Rehabilitation & Resettlement Authority,
Vijayapura.

ANNEXURE

List of Witnesses examined on behalf of Claimant:

PW-1 : Mallappa S/o. Ramappa Talevad

List of Documents marked on behalf of Claimant:

Exs.P:

- | | |
|---------|--|
| 1 | : Reference Application |
| 2 to 7 | : C/Cs of sale deeds |
| 8 | : C/C of Proceedings of DC, Vijayapura |
| 9 | : C/C of Proceedings of Siddeshwar Sugars Ltd. |
| 10 | : C/C of Proceedings of DC, Vijayapura |
| 11 | : C/C of Judgment in LAC No.4/2015 |
| 12 & 13 | : Record of Rights |
| 14 | : Taluka Map |

List of Witnesses examined on behalf of Respondents:

-Nil-

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List of Documents marked on behalf of Respondents:

- Ex.R-1 : Copy of Notice U/S. 19(2) of L.A. Act
Ex.R-2 : Copy of Award No.LAQ:SR:91/2012-13

III Additional District Judge
& Additional Land Acquisition,
Rehabilitation & Resettlement Authority,
Vijayapura.

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ಕರ್ನಾಟಕ ಸರ್ಕಾರ

ಸಂಖ್ಯೆ: ಆರ್‌ಡಿ 04 ಎಲ್‌ಸಿಎ 2024(ಇ- 1351620)

ಕರ್ನಾಟಕ ಸರ್ಕಾರದ ಸಚಿವಾಲಯ,
ಬಹುಮಹಡಿಗ/ ಕಟ್ಟಡ,
ಬೆಂಗಳೂರು, ದಿನಾಂಕ: 07.03.2024

ಸುತ್ತೋಲೆ

ಕೇಂದ್ರ ಮತ್ತು ರಾಜ್ಯ ಸರ್ಕಾರದ ವಿವಿಧ ಯೋಜನೆಗಳ ಕಾಮಗಾರಿಗೆ ಸಂಬಂಧಪಟ್ಟಂತೆ ಭೂಸ್ವಾಧೀನ ಕಾಯ್ದೆಯಡಿ ಸ್ವಾಧೀನಪಡಿಸಿಕೊಂಡ ಜಮೀನುಗಳ ಸಂಬಂಧ ಹೆಚ್ಚುವರಿ ಪರಿಹಾರಧನ ಪಾವತಿಸುವಂತೆ ಕೋರಿ ಮಾನ್ಯ ನ್ಯಾಯಾಲಯಗಳಲ್ಲಿ ದಾಖಲಾಗುವ ಎಲ್.ಎ.ಸಿ., ಓ.ಎಸ್., ರಿಟ್ ಮತ್ತು ಎಕ್ಸ್‌ಕ್ಯೂಷನ್ ಪಿಟಿಷನ್ ಪ್ರಕರಣಗಳಲ್ಲಿ ಸರ್ಕಾರದ ಮುಖ್ಯ ಕಾರ್ಯದರ್ಶಿ / ಸರ್ಕಾರದ ಪ್ರಧಾನ ಕಾರ್ಯದರ್ಶಿ, ಕಂದಾಯ ಇಲಾಖೆ ಮತ್ತು ಸಂಬಂಧಿಸಿದ ವಿಶೇಷ ಭೂಸ್ವಾಧೀನಾಧಿಕಾರಿಗಳನ್ನು ಪ್ರತಿವಾದಿಗಳನ್ನಾಗಿಸಿ ರಾಜ್ಯದಲ್ಲಿ ಹಲವಾರು ನ್ಯಾಯಾಲಯಗಳಲ್ಲಿ ಪ್ರತಿದಿನ ಮೊಕದ್ದಮೆಗಳು, ಭೂಸ್ವಾಧೀನ ಪ್ರಕರಣಗಳು ಮತ್ತು ಇತರೆ ಪ್ರಕರಣಗಳಲ್ಲಿ ಜಪ್ತಿ ಆದೇಶಗಳನ್ನು ಹೊರಡಿಸಲಾಗುತ್ತಿದ್ದು, ಸಂಬಂಧಪಟ್ಟ ಫಲಾನುಭವಿ ಇಲಾಖೆ/ ನಿಗಮ/ ಮಂಡಳಿಗಳನ್ನು ಪ್ರತಿವಾದಿಗಳನ್ನಾಗಿ ಮಾಡದೇ ಇರುವುದು ಸರ್ಕಾರದ ಗಮನಕ್ಕೆ ಬಂದಿರುತ್ತದೆ.

ಆದುದರಿಂದ, ಕೇಂದ್ರ ಮತ್ತು ರಾಜ್ಯ ಸರ್ಕಾರದ ವಿವಿಧ ಯೋಜನೆಗಳ ಕಾಮಗಾರಿಗೆ ಸಂಬಂಧಪಟ್ಟಂತೆ ಭೂಸ್ವಾಧೀನ ಕಾಯ್ದೆಯಡಿ ಸ್ವಾಧೀನಪಡಿಸಿಕೊಂಡ ಜಮೀನುಗಳ ಸಂಬಂಧ ಹೆಚ್ಚುವರಿ ಪರಿಹಾರಧನ ಪಾವತಿಸುವಂತೆ ಕೋರಿ ಮಾನ್ಯ ನ್ಯಾಯಾಲಯಗಳಲ್ಲಿ ದಾಖಲಾಗುವ ಎಲ್ಲಾ ಎಲ್.ಎ.ಸಿ., ಓ.ಎಸ್., ರಿಟ್ ಮತ್ತು ಎಕ್ಸ್‌ಕ್ಯೂಷನ್ ಪಿಟಿಷನ್ ಪ್ರಕರಣಗಳಲ್ಲಿ ಪ್ರಾಥಮಿಕ ಹಂತದಲ್ಲಿಯೇ ಆಕ್ಷೇಪಣೆಗಳನ್ನು ಸಲ್ಲಿಸುವಾಗ ಸಂಬಂಧಪಟ್ಟ ಫಲಾನುಭವಿ ಇಲಾಖೆ/ ನಿಗಮ/ ಮಂಡಳಿಗಳನ್ನು ಪ್ರತಿವಾದಿಗಳನ್ನಾಗಿ ಮಾಡುವುದು ಅತ್ಯಂತ ಕಡ್ಡಾಯ ಎಂಬುದನ್ನು ಸಂಬಂಧಪಟ್ಟ ಸರ್ಕಾರಿ ವಹೀಲರು ಮಾನ್ಯ ನ್ಯಾಯಾಲಯದ ಗಮನಕ್ಕೆ ತರಲು ಸೂಚಿಸಿದೆ.

(ಬಿ.ಆರ್.ಮಂಜುನಾಥ್)
ಸರ್ಕಾರದ ಉಪ ಕಾರ್ಯದರ್ಶಿ
(ಭೂಸ್ವಾಧೀನ ಹಾಗೂ ಪ್ರತಿಷ್ಠೆ)
ಕಂದಾಯ ಇಲಾಖೆ.

ಇವರಿಗೆ:

1. ವ್ಯವಸ್ಥಾಪಕ ನಿರ್ದೇಶಕರು, ಕರ್ನಾಟಕ ನೀರಾವರಿ ನಿಗಮ ನಿಯಮಿತ, ಬೆಂಗಳೂರು.
2. ವ್ಯವಸ್ಥಾಪಕ ನಿರ್ದೇಶಕರು, ಕಾವೇರಿ ನೀರಾವರಿ ನಿಗಮ ನಿಯಮಿತ, ಬೆಂಗಳೂರು.
3. ವ್ಯವಸ್ಥಾಪಕ ನಿರ್ದೇಶಕರು, ಕೃಷ್ಣಾಭಾಗ್ಯ ಜಲ ನಿಗಮ ನಿಯಮಿತ, ಬೆಂಗಳೂರು.
4. ವ್ಯವಸ್ಥಾಪಕ ನಿರ್ದೇಶಕರು, ವಿಶ್ವೇಶ್ವರಯ್ಯ ಜಲ ನಿಗಮ ನಿಯಮಿತ, ಬೆಂಗಳೂರು.
5. ಪ್ರಾದೇಶಿಕ ಆಯುಕ್ತರು, ಬೆಂಗಳೂರು/ಮೈಸೂರು/ಕಲ್ಬುರ್ಗಿ/ಬಳ್ಳಾರಿ ವಿಭಾಗ.
6. ಎಲ್ಲಾ ಜಿಲ್ಲಾಧಿಕಾರಿಗಳು / ವಿಶೇಷ ಜಿಲ್ಲಾಧಿಕಾರಿಗಳು (ಭೂಸ್ವಾಧೀನ) / ಅಪರ ಜಿಲ್ಲಾಧಿಕಾರಿಗಳು.
7. ಎಲ್ಲಾ ಉಪವಿಭಾಗಾಧಿಕಾರಿ ಮತ್ತು ಭೂಸ್ವಾಧೀನಾಧಿಕಾರಿಗಳು, ವಿಶೇಷ ಭೂಸ್ವಾಧೀನಾಧಿಕಾರಿಗಳು.
8. ಎಲ್ಲಾ ಜಿಲ್ಲಾ ಸರ್ಕಾರಿ ವಹೀಲರು/ಅಪರ ಸರ್ಕಾರಿ ವಹೀಲರು/ ಹೆಚ್ಚುವರಿ ಸರ್ಕಾರಿ ವಹೀಲರು.